

Who Owns 100 Beal Street?

Examining the Legal Impasse, Deed Restrictions, State Statutes, and Developer Ground Lease Structure

Property Location: 100 Beal Street, Hingham, MA 02043	Current Legal Owner: Hingham Housing Authority (HHA)
Assessor Parcel: Map 58, Block 0, Lot 23 (15.014 Acres)	State Statutory Authority: M.G.L. Chapter 121B, § 34
Historical Tract: "School Tract II" (Perkins Engineering Plan 1972)	Developer Partner: Peabody Properties / AHSC (Ground Lessee)

Definitive Legal Finding: Fee simple title to 100 Beal Street is held exclusively by the **Hingham Housing Authority (HHA)**. The Town of Hingham does *not* own the property. While the Town sought to force a conveyance of the excess 8.6 acres back to municipal ownership via a 2001 agreement and a 2019 litigation vote, the Commonwealth intervened under **M.G.L. c. 121B, § 34** to permanently bar the transfer, affirming that the entire 15-acre tract must remain dedicated to public affordable housing.

1. The Chain of Title & Original Conveyance (1989)

The parcel originally formed part of the U.S. Naval Ammunition Depot, which was transferred to the Town of Hingham by the federal government in December 1973 (Book 3961, Page 692). On **March 7, 1989**, authorized by Article 53 of the May 1987 Annual Town Meeting, the Town conveyed the 15.014-acre parcel known as "School Tract II" to the Hingham Housing Authority for \$45,751.00.

Primary Citation: [Hingham_Beal_Street_Deed_1989_and_ZBA_Decision.pdf](#)

Recorded at Plymouth County Registry of Deeds at **Book 9097, Page 158** (Plan Book 17, Page 508 / Book 9097, Page 160).

The 1989 deed contained two crucial legal provisions that shaped the next three decades of municipal debate:

- The Use Restriction:** *"This property is to be used only for a residential educational facility for emotionally disturbed adolescents operated through the Hingham Housing Authority by the South Shore Educational Collaborative or similar entity; or, if required pursuant to M.G.L. c. 121B, § 34, by the Massachusetts Executive Office of Communities and Development."*
- The Expired Reverter Clause:** The deed specified that if a breach of the use condition occurred after December 17, 2003, title would revert to the Town through a right of entry; *"provided, however, that said right of entry shall terminate after thirty years from the date hereof."* That 30-year right of re-entry statutorily expired on **March 7, 2019**.

2. State Public Housing Funding & Legal Status of the Youth Residence

To construct the required adolescent residence (operated by Bay State Community Services under contract with DCF), the Housing Authority accepted state capital funding under **Massachusetts General Laws Chapter 689** (Specialized Housing for Persons with Disabilities, Project 689-01).

Under Massachusetts law, a local housing authority is not a town department—it is an independent *public body politic and corporate*. By utilizing state Chapter 689 funds, the entirety of School Tract II became state-assisted public housing property subject to the oversight of the Massachusetts Department of Housing and Community Development (DHCD, now EOHLC).

3. The 2001 Bunker Remediation MOU & The 2019 Lawsuit Vote

In 2001, the Town of Hingham expended taxpayer funds to demolish and remediate abandoned underground military ammunition bunkers located in the wooded portions of the parcel. In exchange, the Town and HHA entered into a **Memorandum of Understanding (MOU) on June 12, 2001** contemplating that HHA would subdivide the parcel and convey the unused acreage back to the Town.

Primary Citations:

[Select_Board_Minutes_2017-09-20_100_Beal.pdf](#)

[Select_Board_Minutes_2018-02-08_100_Beal.pdf](#)

[Select_Board_Executive_Session_Minutes_2019-02-26_100_Beal.pdf](#)

[2019-02-26_Selectmen_iS0kQLHX-5s_GeminiPro_transcript.txt](#)

For nearly eighteen years, the land was never transferred. The conflict culminated on **February 26, 2019**, when the Hingham Board of Selectmen convened in Executive Session. Town Real Estate Counsel Susan Murphy and Liaison Karen Johnson reported that the Town and Housing Authority had reached an impasse. The Selectmen voted unanimously (**3–0**) to file a formal lawsuit against the Housing Authority to compel enforcement of the 2001 agreement.

4. The State Statutory Intervention (M.G.L. c. 121B, § 34)

When the Housing Authority briefly voted on June 5, 2019, to comply with the Town's demands, the Commonwealth intervened decisively:

- **DHCD Legal Ruling:** In formal notices dated April 19, 2019, and July 19, 2019, DHCD notified both the Town and the Housing Authority that under **M.G.L. c. 121B, § 34**, real property acquired or funded for state public housing *cannot be disposed of, transferred, or conveyed without the express written approval of the state housing agency and the Attorney General*.
- **Cloud on Title Recorded:** On **July 18, 2019**, DHCD recorded a formal **Notice of Statutory Transfer Restriction** in the Plymouth County Registry of Deeds at **Book 51379, Page 244**. This permanent state encumbrance barred the Town from acquiring the land and blocked HHA from deeding it away.
- **HHA Rescission:** On **September 7, 2021**, the HHA Board of Commissioners voted **4–0** to formally rescind its prior transfer vote, reaffirming that the land would remain dedicated to affordable housing.

Primary Citation: [HHA_Minutes_2019-07-09_100_Beal_School_Tract_II.pdf](#) & [town_documents_and_legal_records_v2.md](#)

5. The 2006 Town Meeting Deed Amendment

Any remaining claim that the land could only be used for the adolescent home was eliminated by Town Meeting itself. On **April 26, 2006**, under **Article 38**, Hingham Town Meeting officially voted to amend the 1989 deed restriction on School Tract II to authorize: *"residential development which includes affordable housing that qualifies for inclusion on the Subsidized Housing Inventory (SHI)."*

Primary Citations:

[Hingham_Town_Meeting_Warrant_2006_Article_38_School_Tract_II.pdf](#)

[Hingham_Town_Meeting_2006_Beal_St_Amended_Deed_Vote.pdf](#)

6. Current Ownership Structure for the 68-Unit Senior Project

Under the Developer RFP and the Land Disposition and Development Agreement (LDDA) executed on **August 25, 2026**, fee ownership does not change hands:

How Ownership is Structured:

- **Fee Simple Landowner:** **Hingham Housing Authority** retains permanent public ownership of the land.
- **Long-Term Ground Lease:** HHA grants a **99-year Ground Lease** to the designated private developer, **Peabody Properties / Affordable Housing Services Corporation (AHSC)**.
- **Developer Role:** Peabody Properties will finance, construct, own, and manage the 3-story, 68-unit building structure and improvements, while paying ground rent and complying with affordability covenants.
- **Adolescent Facility Lot:** The existing adolescent residence on Lot A will continue operating under Bay State Community Services without interruption.

Primary Citations:

[Hingham-HA-Beal-St-RFP-04-16-25_Final_all-attachments.pdf](#) (155 Pages)

[Hingham_Housing_Authority_Draft_Ground_Lease_100_Beal.pdf](#)

[Hingham_Housing_Authority_Draft_LDA_100_Beal.pdf](#)

[HHA_Agenda_2026-08-25_Land_Disposition_Peabody.pdf](#)

7. Summary of Authoritative Document Citations

Document Name	Legal Registry / Entity	Core Legal Significance
1989 Town Conveyance Deed	Plymouth Book 9097, Page 158	

Document Name	Legal Registry / Entity	Core Legal Significance
		Transferred fee simple title of School Tract II from Town to HHA for youth facility with 30-year reverter (expired March 2019).
2006 Town Meeting Vote	Article 38 Certified Vote	Town Meeting legally amended deed restrictions to permit multi-family Chapter 40B affordable housing on the SHI.
Selectmen Executive Minutes	Hingham Select Board (Feb 26, 2019)	Unanimous 3–0 vote to sue HHA to force land transfer under 2001 MOU.
Notice of Statutory Restriction	Plymouth Book 51379, Page 244	Commonwealth DHCD recorded restriction under M.G.L. c. 121B § 34 prohibiting land transfer away from public housing.
HHA Developer RFP	HHA Procurement (April 16, 2025)	155-page solicitation structuring 99-year Ground Lease of Lot B for senior affordable housing while preserving Lot A youth home.
HHA LDDA Execution	HHA Board Agenda (Aug 25, 2026)	Official execution of Land Disposition and Development Agreement with Peabody Properties for 68-unit development.